

25CV-06368

Austine Joseph vs Ted Brase, et al.

Motion to be Relieved as Counsel

The unopposed motion by attorney John F. Christl and the law firm of Sweet James, LLP, to be relieved as counsel for plaintiff Austine Joseph is GRANTED.

The Court will sign the order, on mandatory form MC-053, lodged on June 26, 2026. The order will be effective upon the filing of the proof of service of the signed order upon the client.

26CV-00869

Javier Alvarado vs Central Valley Opportunity Center, Incorporated

Motion to Compel Defendant Central Valley Opportunity Center Incorporated's Response to Plaintiff's Special Interrogatory, Set One, No. 1, and Request for Monetary Sanctions Against Defendant in the Amount Of \$4,110.00

Continued from July 16, 2026.

The motion to compel a response to Special Interrogatory, Set One, No. 1, is DENIED as premature

Exhibit C, attached to the Declaration of Young, establishes that Defendant had until June 5, 2026, to provide discovery responses. (Young Decl., ¶ 5, Exhibit C, p. 3.) Plaintiff filed their motion on June 4, 2026. As this is prior to the June 5, 2026, due date, Plaintiff's motion is premature. If Defendant served responses on June 5, 2026, which is alleged in Defendant's opposition, the responses would be timely, and this motion would be unnecessary.

Motion for Judgment on the Pleadings

Continued from July 16, 2026.

The motion for judgment on the pleadings is DENIED.

The request for judicial notice is DENIED as to Exhibits A, B, and E, as the truth or interpretation of the documents is disputed.

The request for judicial notice is GRANTED as to Exhibits C and D, but only as to the existence of the documents and not the truth or interpretation of the contents as they are disputed.

The request for judicial notice of Defendant's and Plaintiff's counsel's websites is DENIED as irrelevant.

Plaintiff's objections to the Declaration of Bryan B. Miller are OVERRULED. Plaintiff's objections to the Declaration of Custodian of Records are OVERRULED.

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff’s claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

Here, accepting Plaintiff’s allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant’s evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

26CV-02336 Gemma Quintero vs Aniah Jenkins

Order to Show Cause Re: Restraining Order

Appearance required. All parties have appeared in this action.

26CV-03091 Vanessa Mercado vs Danielle Navarro

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed with the court on July 8, 2026.

26CV-03428 Angel Rivas vs Jessica Lynn Pieri

Petition for Minor’s Compromise

The petition for approval of the minor’s compromise is GRANTED.